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Chief, Foreign Investment Review Section ("FIRS")
Deputy Chief, Compliance and Enforcement, FIRS
On Behalf of the Assistant Attorney General for National Security
U.S. Department of Justice
National Security Division
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Subject: Application of Fusion Connect, Inc. LLC et al., FCC File Nos. ITC-T/C-20220317-00038; WC 22-128 (TT 22-018 to -019) for Consent to a Transaction That Will Result in a Change of Control of Companies Holding Domestic and International Authority Pursuant to Section 214 of the Communications Act of 1934, as Amended, and 47 C.F.R. §§ 63.04, 63.18, and 63.24.

Dear Sir/Madam:

This Letter of Agreement ("LOA") sets forth the commitments that Fusion Connect, Inc. ("Fusion Connect") and its wholly-owned operating subsidiaries, Fusion LLC; Fusion Cloud Services, LLC; Fusion Communications, LLC; and Fusion Telecom of Texas Ltd., L.L.P. (together with Fusion Connect, the "Fusion Licensees"), and the North Haven Entities (including North Haven Credit Partners II L.P.; North Haven Senior Loan Fund L.P.; and North Haven Credit Partners III Holdings L.P.) make to the U.S. Department of Justice ("USDOJ"), including the Federal Bureau of Investigation ("FBI"), to address national security and law enforcement risks arising from the above-referenced applications to the Federal Communications Commission ("FCC").¹ The obligations in this LOA apply to all Fusion Licensees as operational entities holding the relevant domestic or international Section 214 telecommunications licenses, however the Fusion Licensees may comply with this LOA by making their nominations, submissions, notifications, and reports through Fusion Connect as the one hundred percent owner of the Fusion Licensees.²

¹ *In the Matter of Fusion Connect, Inc., Licensee and Transferor, and The North Haven Entities, Transferees*, for Consent to a Transaction That Will Result in a Change of Control of Companies Holding Domestic and International Authority Pursuant to Section 214 of the Communications Act of 1934, as Amended, FCC File Nos. ITC-T/C-20220317-00038; WC 22-128 (Mar. 17, 2022); supplemented Mar. 28, 2022.

² To provide illustrative examples, pursuant to Paragraphs 2-5, the Fusion Licensees need only designate and maintain one U.S. law enforcement point of contact who can perform the required responsibilities for all Fusion Licensees. However, per Paragraphs 25-28, the Fusion Licensees are required to report incidents and breaches affecting any of the Fusion Licensees, not just Fusion Connect, even if Fusion Connect is the party the Fusion Licensees designate to disclose the incident or breach to USDOJ under this LOA.

In the applications, Fusion Connect and the North Haven Entities seek the FCC's consent pursuant to Section 214 of the Communications Act of 1934, as amended, and 47 C.F.R. §§ 63.04, 63.18, and 63.24 to transfer to the North Haven Entities control of the Fusion Licensees, which hold domestic and international Section 214 telecommunications licenses.³

The Fusion Licensees and the North Haven Entities certify as true and correct, under penalties outlined in 18 U.S.C. § 1001, all statements they or their representatives have made to USDOJ, the Department of Homeland Security, the Department of Defense, and the FCC in the course of the review of the above-referenced applications that was conducted pursuant to Executive Order 13913,⁴ and they hereby adopt those statements as the basis for this LOA.

Definitions

1. For purposes of this LOA, the following definitions apply:
 - a. "Access" means: (1) to enter a location; or (2) to obtain, read, copy, edit, divert, release, affect, alter the state of, or otherwise view data or systems in any form, including through information technology ("IT") systems, cloud computing platforms, networks, security systems, and equipment (software and hardware). For the avoidance of doubt, Access shall be construed broadly to include rather than exclude considered conduct.
 - b. "Call Detail Record" ("CDR") means the data records or call log records that contain information about each call made by a user and processed by a switch, call manager, or call server.
 - c. "Customer Proprietary Network Information" ("CPNI") means as set forth in 47 U.S.C. § 222(h)(1).
 - d. "Cybersecurity Incident Response Plan" means a plan or processes put in place to develop and implement the appropriate activities to take action regarding a detected cybersecurity event that has been determined to have an impact on the organization prompting the need for response and recovery.
 - e. "Date of FCC Approval" means the date on which the FCC releases a public notice granting the FCC applications.
 - f. "Domestic Communications" ("DC") means:
 - (i) Wire Communications or Electronic Communications, as defined by 18 U.S.C. § 2510, (whether stored or not), from one location within

³ Fusion Connect holds an international Section 214 authorization, FCC File No. ITC-214-19971011-00592; FCC Filer ID 825160, and Fusion LLC; Fusion Cloud Services, LLC; Fusion Communications, LLC; and Fusion Telecom of Texas Ltd., L.L.P each hold domestic Section 214 authorizations.

⁴ 85 Fed. Reg. 19643 (Apr. 8, 2020).

the United States, including its territories, to another location within the United States; or

- (ii) The U.S. portion of a Wire Communication or Electronic Communication (whether stored or not) that originates or terminates in the United States or its territories.

g. “Domestic Communications Infrastructure” (“DCI”) means any system of the Fusion Licensees that supports any communications originating or terminating in the United States, including its territories, including any transmission, switching, bridging, and routing equipment, and any associated software (with the exception of commercial-off-the-shelf (“COTS”) software used for common business functions, *e.g.*, Microsoft Office) used by, or on behalf of, the Fusion Licensees to provide, process, direct, control, supervise, or manage DC but would not include the systems of entities for which the Fusion Licensees have a contracted arrangement for interconnection, peering, roaming, long-distance, or wholesale network access.

h. “Electronic Surveillance” means:

- (i) The interception of wire, oral, or electronic communications as set forth in 18 U.S.C. §§ 2510(1), (2), (4) and (12), respectively, and electronic surveillance as set forth in 50 U.S.C. § 1801(f);
- (ii) Access to stored wire or electronic communications, as referred to in 18 U.S.C. § 2701 *et seq.*;
- (iii) Acquisition of dialing, routing, addressing, or signaling information through pen register or trap and trace devices or other devices or features capable of acquiring such information pursuant to law as set forth in 18 U.S.C. § 3121 *et seq.* and 50 U.S.C. § 1841 *et seq.*;
- (iv) Acquisition of location-related information concerning a subscriber or facility;
- (v) Preservation of any of the above information pursuant to 18 U.S.C. § 2703(f); and
- (vi) Access to or acquisition, interception, or preservation of, wire, oral, or electronic communications or information as described in (i) through (v) above and comparable state laws.

i. “Foreign” means non-United States, or its territories.

j. “Geolocation Data” means any information collected by the Fusion Licensees from their customers regarding a customer’s location or the customer’s device location.

k. “Government” means any government, or governmental, administrative, or regulatory entity, authority, commission, board, agency, instrumentality, bureau or political subdivision, and any court, tribunal, judicial, or arbitral body.

l. “Internet Protocol Detail Record” (“IPDR”) means information about internet protocol-based usage and other activities that can be used by operation support systems (“OSS”) and business support systems (“BSS”) by recording data statistics that provide network insight on capacity, subscriber usage, and proactive network maintenance.

m. “Lawful U.S. Process” means U.S. federal, state, or local court orders, subpoenas, warrants, processes, directives, certificates or authorizations, and other orders, legal process, statutory authorizations and certifications for Electronic Surveillance, physical search and seizure, production of tangible things, or Access to or disclosure of DC, call-associated data, transactional data, Subscriber Information, or associated records.

n. “Managed Network Service Provider” (“MNSP”) means any third party that has Access to Principal Equipment for the purpose of:

- (i) network operation; provisioning of Internet and telecommunications services; routine, corrective, and preventative maintenance, including switching, routing, and testing; network and service monitoring; network performance, optimization, and reporting; network audits, provisioning, creation and implementation of modifications or upgrades; or
- (ii) provision of DC or operation of DCI, including: customer support; OSS; BSS; Network Operations Centers; information technology; cloud operations/services; 5G (Software Defined Networking, Network Functions Virtualization, Applications); and datacenter services and operations.

o. “Network Operations Center” (“NOC”) means any locations and facilities performing network management, monitoring, accumulating accounting and usage data, maintenance, user support, or other operational functions for DC.

p. “Offshore” means performing obligations of this LOA using entities and personnel outside of the territorial limits of the United States, whether or not those entities or personnel are employees of the Fusion Licensees.

q. “Outsource” means, with respect to DC, supporting the services and operational needs of the Fusion Licensees at issue in this LOA using contractors or third parties.

r. “Personally Identifiable Information” (“PII”) means any information that uniquely identifies and correlates to a natural person or can be used to distinguish or trace a natural person’s identity, alone, including a natural person’s name, social security number, or biometric records, or when combined with other personal or identifying information that is linked or linkable to a specific individual, including date and place of birth, or parent’s surname.

s. “Principal Equipment” means all telecommunications and information network equipment (*e.g.*, hardware, software, platforms, operating systems, applications, protocols) that supports core telecommunications or information services, functions, or operations.

t. “Security” means a condition that results from the establishment and maintenance of protective measures that enable an organization to perform its mission or critical functions despite risks posed by threats to its use of systems. Protective measures may involve a combination of deterrence, avoidance, prevention, detection, recovery, and correction that should form part of the organization’s risk management approach.

u. “Security Incident” means:

- (i) Any known or suspected breach of this LOA, including a violation of any approved plan, policy, or procedure under this LOA;
- (ii) Any unauthorized Access to, or disclosure of, U.S. Records;
- (iii) Any unauthorized Access to, or disclosure of, information obtained from or relating to Government entities; or
- (iv) Any one or more of the following which affect the Fusion Licensees’ computer network(s) or associated information systems:
 - A. Unauthorized disruptions to a service or denial of a service;
 - B. Unauthorized processing or storage of data;
 - C. Unauthorized modifications to system hardware, firmware, or software, including the identification of vulnerabilities introduced through a cyber supply chain compromise;
 - D. Unplanned incidents that cause activation of the Fusion Licensees’ Cybersecurity Incident Response Plan;
 - E. Attempts from unauthorized sources to Access systems or data if these attempts to Access systems or data may materially affect the Fusion Licensees’ ability to comply with the terms of this LOA; or
 - F. An unauthorized occurrence that (1) actually or imminently jeopardizes the integrity, confidentiality, or availability of information or an information system; or (2) constitutes a violation or imminent threat of violation of law, security policies, security procedures, or acceptable use policies.

v. “Sensitive Personal Data” means sensitive personal data as set forth in 31 C.F.R. § 800.241.

w. “Subscriber Information” means any information of the type referred to and accessible subject to the procedures set forth in 18 U.S.C. § 2703(c)(2) or 18 U.S.C. § 2709, as amended or superseded.

x. “U.S. Records” means the Fusion Licensees’ customer billing records, Subscriber Information, PII, Sensitive Personal Data, CDRs, IPDRs, CPNI, Geolocation Data, and any other information used, processed, or maintained in the ordinary course of business related to the services offered by the Fusion Licensees within the United States, including information subject to disclosure to a U.S. federal or state governmental entity under the procedures set forth in 18 U.S.C. §§ 2703(c)-(d), and 18 U.S.C. § 2709.

Personnel

2. The Fusion Licensees agree to designate and maintain a U.S. law enforcement point of contact (“LEPOC”) in the United States who will be subject to prior approval by USDOJ, including the FBI. The LEPOC shall be a U.S. citizen residing in the United States or its territories unless USDOJ otherwise agrees in writing. The LEPOC must be approved by the FBI to receive service of Lawful U.S. Process including for U.S. Records, and, where possible, to assist and support lawful requests for Electronic Surveillance or production of U.S. Records by U.S. federal, state, and local law enforcement agencies.

3. The Fusion Licensees agree to provide the LEPOC’s PII to USDOJ within **15 days** of the Date of FCC Approval. USDOJ agrees to object or non-object within **15 days** from receiving the LEPOC’s PII.

4. The Fusion Licensees agree to notify USDOJ, including the FBI, in writing at least **30 days** prior to modifying their LEPOC for USDOJ and FBI objection or non-objection. For those cases involving the unexpected firing, resignation, or death of the LEPOC, written notice will be provided within **five days** of such event. Under these circumstances, USDOJ and FBI will object or non-object to the replacement LEPOC within **30 days** of notification.

5. The Fusion Licensees agree that the designated LEPOC will have Access to all U.S. Records, and, in response to Lawful U.S. Process, will make such records available promptly and, in any event, will respond to the request no later than **five days** after receiving such Lawful U.S. Process unless USDOJ grants an extension.

6. The Fusion Licensees agree to implement, either directly or through a vendor, a process to screen existing or newly hired personnel who have Access to the Fusion Licensees’ DC, DCI, or U.S. Records (including, but not limited to, personnel of the Fusion Licensees or their affiliates’ personnel, and Principal Equipment vendor or Outsourced or Offshored service provider personnel). To satisfy their obligations with respect to the employees of an approved Outsourced or Offshored service provider that have Access to DC, DCI, or U.S. Records, the Fusion Licensees will seek to contractually commit such third parties to comply with the personnel screening process in this paragraph. If a third-party service provider fails to agree to

such a commitment, the Fusion Licensees shall notify USDOJ within **14 days** of the termination of the relevant negotiations. The personnel screening process shall include background investigations, public criminal records checks, or other analogous means to ascertain a person's trustworthiness. The Fusion Licensees further agree to provide USDOJ with a written description of this personnel-screening process no later than **60 days** after the Date of FCC Approval. USDOJ agrees to object or non-object within **60 days** of receiving notice.

7. The Fusion Licensees agree to notify USDOJ of all Foreign persons (including, but not limited to employees of the Fusion Licensees or their affiliates' employees, or Principal Equipment vendor or Outsourced or Offshored service provider employees), that they intend to allow Access to U.S. Records, DC, or DCI. The Fusion Licensees agree to make such notification no less than **20 days** prior to the date by which they are seeking such Access be granted, or, with respect to any Foreign persons with such Access as of the Date of FCC Approval, within **30 days** of the Date of FCC Approval. The Fusion Licensees further agree to provide the PII to USDOJ for each Foreign person so identified. USDOJ agrees to object or non-object within **20 days** of receiving notice.

Security Officer

8. The Fusion Licensees agree to designate and maintain a security officer ("Security Officer") who is a non-dual United States citizen residing in the United States and may also designate and maintain an alternate security officer ("Alternate Security Officer") to fulfill the responsibilities of the Security Officer in the event of the Security Officer's unavailability. The proposed Security Officer (and any Alternate Security Officer) must be eligible to obtain and maintain a "Secret" level or higher U.S. Government security clearance immediately upon appointment. The Security Officer and any Alternate Security Officer will have the appropriate authority and skills to implement the terms of this LOA and to address security concerns identified by USDOJ. The Security Officer and any Alternate Security Officer will have the appropriate senior-level corporate authority within the Fusion Licensees to perform their duties under this LOA. The Security Officer and any Alternate Security Officer will possess the necessary resources and skills to enforce this LOA and to act as a liaison to USDOJ regarding compliance with this LOA and to address any national security or law enforcement issues arising during the Fusion Licensees' due course of business. The Fusion Licensees will provide the Security Officer and any Alternate Security Officer with Access to the Fusion Licensees' business information that is necessary for the Security Officer and any Alternate Security Officer to perform their duties.

9. The Security Officer will be available 24 hours per day, 7 days per week, to respond to and address any national security or law enforcement concerns that USDOJ may raise with respect to the Fusion Licensees or their operations, except that if the Fusion Licensees designates an Alternate Security Officer, then in the event that the Security Officer is unavailable, the Alternate Security Officer will be available to respond to and address such concerns. Upon request by USDOJ, the Security Officer or, as applicable, Alternate Security Officer, will make himself or herself available in person, or, if the Fusion Licensees request and USDOJ agrees, by videoconference, within the United States or its territories within **72 hours**, at a date and location, including in a classified setting, (or by video conference if consented to by USDOJ) as deemed necessary by USDOJ.

10. The Fusion Licensees agree to nominate a proposed candidate for Security Officer to USDOJ within **15 days** of the Date of FCC Approval, and thereafter will provide at least **10 days'** notice of a Security Officer's departure, and **30 days'** prior notice of a new Security Officer designation (except in the case of the unexpected firing, resignation, or death of the Security Officer in which case such written notice of such departure or designation must be provided within **five days** of such event). The Fusion Licensees further agree to not maintain a vacancy or suspension of the Security Officer position for a period of more than **60 days**. In the event that the Fusion Licensees designate an Alternate Security Officer, the Fusion Licensees will nominate a proposed candidate for Alternate Security Officer at least **30 days** prior to the date on which the Fusion Licensees propose to designate an Alternate Security Officer. The Fusion Licensees agree to provide the proposed Security Officer's (and any Alternate Security Officer's) PII with the nomination, along with the proposed Security Officer's plan to ensure employees of the Fusion Licensees are appropriately trained in LOA compliance. All Security Officer nominations and any Alternate Security Officer nominations will be subject to USDOJ review and non-objection and may be subject to a background check at the sole discretion of USDOJ. USDOJ will object or non-object to the proposed Security Officer or Alternate Security Officer, if applicable, within **30 days** of notification. The Fusion Licensees agree to address concerns raised by USDOJ regarding the selection and identity of the Security Officer and any Alternate Security Officer.

Lawful U.S. Process and Requests for Information

11. The Fusion Licensees agree to comply with all applicable lawful interception statutes, regulations, and requirements, as well as comply with all court orders and other Lawful U.S. Process for lawfully authorized Electronic Surveillance. The Fusion Licensees further agree to certify to USDOJ their compliance with the Communications Assistance for Law Enforcement Act ("CALEA"), 47 U.S.C. §§ 1001-10, and its implementing regulations, within **30 days** from the Date of FCC Approval.

12. The Fusion Licensees agree to provide notice of any material modification to their lawful intercept capabilities to USDOJ within **30 days** of such modification and will re-certify their compliance with CALEA no more than **60 days** following their notice to USDOJ of any material new facilities, services, or capabilities.

13. Upon receipt of any Lawful U.S. Process, the Fusion Licensees agree to place any and all information responsive to the Lawful U.S. Process within the territorial boundaries of the United States and otherwise provide information to the requesting officials, in a manner and time consistent with the Lawful U.S. Process.

14. The Fusion Licensees agree not to provide, or otherwise allow the disclosure of, or Access to, U.S. Records, DCI, or DC to any Foreign Government, Foreign entity, or any Foreign person (except as provided under Paragraph 7), without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

15. The Fusion Licensees agree not to disclose the receipt of Lawful U.S. Process, or compliance with Lawful U.S. Process, to any Foreign Government, Foreign entity, or any person not authorized under the Lawful U.S. Process, without prior written consent of USDOJ, or a court of competent jurisdiction in the United States.

16. The Fusion Licensees agree to refer any requests for information described in Paragraphs 14 or 15 from a Foreign person (other than, with respect to the information described in Paragraph 14, those Foreign persons that are screened consistent with Paragraph 7 of this LOA), or a Foreign Government, including any legal process from a Foreign Government, to USDOJ as soon as possible, but in no event later than **five days** after such a request, or legal process, is received by, or made known to, the Fusion Licensees, unless disclosure of the request, or legal process, would be in violation of U.S. law, or in violation of an order of a court of competent jurisdiction in the United States.

17. Except as set forth within Paragraph 14, the Fusion Licensees agree not to comply with such requests from Foreign Governments and Foreign persons without prior written consent of USDOJ, or an order of a court of competent jurisdiction in the United States.

18. The Fusion Licensees agree to ensure that U.S. Records are not subject to mandatory destruction under any Foreign laws.

Unauthorized Access and Security Incidents

19. The Fusion Licensees agree to take all practicable measures to prevent unauthorized Access to U.S. Records, DC, and the DCI.

20. The Fusion Licensees agree to take all practicable measures to prevent any unlawful use or disclosure of information relating to U.S. Records or DC.

21. The Fusion Licensees agree to prepare: (1) a Cybersecurity Plan; and (2) a comprehensive System Security Plan (“SSP”) (together the “Plans”), each of which shall be guided by the current version of the National Institute of Standards and Technology (“NIST”) Cybersecurity Framework, and incorporate applicable controls found in NIST SP 800-53, NIST SP 800-171, or other international information security standards. The Fusion Licensees will provide copies of those Plans to USDOJ within **60 days** of the Date of FCC Approval for objection or non-objection. Furthermore, the Fusion Licensees agree that the Plans will be updated when appropriate to conform with evolving information security standards, and that the Fusion Licensees will make additional modifications to these Plans, if requested by USDOJ, and to work with USDOJ to implement such modifications. USDOJ agrees to object or non-object within **60 days** of receiving each version of the Plan.

22. The Fusion Licensees agree that their Plans will include, among other things, policies relating to their information security, supply chain security, peering and routing security, cybersecurity incident response, remote Access, physical security, cybersecurity, third-party contractors, Outsourcing and Offshoring, maintenance and retention of system logs, periodic control assessments, protection of Lawful U.S. Process, protection of U.S. Records and DC obtained by the Fusion Licensees in the ordinary course of business, and the Fusion Licensees’

plans regarding new contracts or amendments to existing contracts with third-party service providers requiring those third parties to: a) notify the Fusion Licensees when required under Paragraphs 25 and 26, and b) screen personnel as required under Paragraphs 6 and 7.

23. The Fusion Licensees further agree to take timely and appropriate remedial measures, as recommended by the US-Computer Emergency Readiness Team/Cybersecurity and Infrastructure Security Agency (“US-CERT”/“CISA”), an Information Sharing and Analysis Center (“ISAC”), or similar U.S. authority, to respond to and recover from any cyber or supply chain incident and mitigate vulnerabilities.

24. The Fusion Licensees agree to notify USDOJ at least **30 days** prior to changing the location for storage of U.S. Records or DC. USDOJ will object or non-object within **30 days** of receipt of the Fusion Licensees’ notice. Such notice shall include:

- a. A description of the type of information to be stored in the new location;
- b. The custodian of the information (even if such custodian is one of the Fusion Licensees);
- c. The location where the information is to be stored;
- d. Updated SSP and Cybersecurity Plans detailing the physical/logical protections at the new location; and
- e. The factors considered in deciding to store that information in the new location.

Reporting Incidents and Breaches

25. The Fusion Licensees agree to report to USDOJ promptly, and in any event no later than **72 hours**, after they learn of information that reasonably indicates a known or suspected:

- a. Security Incident;
- b. Unauthorized Access to, or disclosure of, any information relating to services provided by the Fusion Licensees, or referring or relating in any way to the Fusion Licensees’ customers in the United States or its territories;
- c. Any unauthorized Access to, or disclosure of, DC in violation of federal, state, or local law; or
- d. Any material breach of the commitments made in this LOA.

26. The Fusion Licensees agree to seek to require any third-party service provider to disclose to the Fusion Licensees any data breach of any U.S. Records or DC, or any loss of U.S. Records or DC, whether from a data breach or other cause, within **72 hours** of the third party discovering the breach or loss. The Fusion Licensees agree further to seek to require any third-party service provider to disclose to the Fusion Licensees, within **72 hours** of discovery, any critical exposure, threats, and vulnerabilities associated with the products or services provided to the Fusion Licensees that are the result of the insertion of counterfeits, unauthorized production, tampering, theft, or insertion of malicious software and hardware into such products or services or into the third-party providers’ supply chain. If a third-party service provider fails to agree to disclose such a breach, the Fusion Licensees shall notify USDOJ within **14 days** of the termination of the relevant negotiations.

27. The Fusion Licensees agree to notify USDOJ, including the points of contact (“POCs”) listed in this LOA, in writing of any of the Security Incidents or breaches described in this LOA. Such notification shall take place no later than **72 hours** after the Fusion Licensees have knowledge of, or are informed by, a third party providing Outsourced or Offshored services to the Fusion Licensees, that the incident, intrusion, or breach has taken or is taking place, or sooner when required by statute or regulations.

28. The Fusion Licensees agree to notify the FBI and U.S. Secret Service as provided in 47 C.F.R. § 64.2011 within **seven business days** after reasonable determination that a person without authorization, or in exceeding his or her authorization, has gained Access to, used, or disclosed CPNI, whether through the Fusion Licensees’ networks or that of a third party used by the Fusion Licensees, and shall electronically report the matter to the central reporting facility through the following portal: <https://www.cpnireporting.gov>.

Principal Equipment

29. The Fusion Licensees agree to provide USDOJ within **30 days** of the Date of FCC Approval, a Principal Equipment list. USDOJ will object or non-object to the Principal Equipment list within **60 days** of receipt. The Principal Equipment list shall include the following:

- a. A complete and current list of all Principal Equipment, including:
 - (i) a description of each item and the functions supported,
 - (ii) each item’s manufacturer, and
 - (iii) the model and/or version number of any hardware or software.
- b. The name, address, phone number, and website for any vendors, contractors, or subcontractors involved in providing, installing, operating, managing, repairing, or maintaining the Principal Equipment.

30. The Fusion Licensees agree to notify USDOJ in writing at least **30 days** prior to introducing any new Principal Equipment of a different make or model than the Principal Equipment identified and approved pursuant to Paragraph 29, or subsequently approved by USDOJ pursuant to this Paragraph, or modifying any of their Principal Equipment. USDOJ will object or non-object to such new Principal Equipment or modification to the Principal Equipment within **30 days** of receipt of notice. In an emergency situation, the Fusion Licensees may, without prior notice, replace existing Principal Equipment with equipment produced by the same manufacturer (who has previously been disclosed to USDOJ and cleared without objection pursuant to the procedures in Paragraphs 29 and 30 of this LOA), as long as USDOJ is notified of the new equipment as soon as practicable and in no event later than **48 hours** after replacement.

31. The Fusion Licensees agree to provide USDOJ with the name, address, phone number, and website of any providers, suppliers, and entities that will perform any maintenance, repair, or replacement that may result in any introduction of new Principal Equipment or

modification to their Principal Equipment or systems or software used with or supporting the Principal Equipment. USDOJ will object or non-object to the nominated providers, suppliers, and entities selected by the Fusion Licensees within **30 days** of receipt of notice.

32. The Fusion Licensees agree to provide to USDOJ updated network diagrams and topology maps showing all facilities, devices, interfaces, Points of Presence (“PoPs”), exchange points, and NOCs within **60 days** from the Date of FCC Approval.

Outsourced and Offshored Services

33. The Fusion Licensees agree to provide USDOJ within **30 days** of the Date of FCC Approval, a list of all Outsourced or Offshored service providers that provide services to the Fusion Licensees. USDOJ will object or non-object to the Outsourced and Offshored service provider list within **60 days** of receiving notice. The list should include any Outsourced or Offshored service provider that provides services for:

- a. MNSP services;
- b. NOC(s);
- c. Network maintenance services;
- d. Billing or customer support services;
- e. Any operation or service that could potentially expose the DCI, DC, or U.S. Records; and
- f. Deploying any network elements, hardware, software, core network equipment, and network management capabilities, including those that are owned, managed, manufactured, or controlled by a Foreign Government.

The Fusion Licensees further agree to provide the name, address, phone number, website, and description of services provided for each Outsourced or Offshored provider included on the list submitted to USDOJ pursuant to this Paragraph.

34. The Fusion Licensees agree to notify USDOJ in writing no less than **30 days** prior to the use of any new Outsourced or Offshored service providers that will provide any of the services described in Paragraph 33. The Fusion Licensees agree that such notification shall include all of the identifying information contained in Paragraph 33 for the new Outsourced or Offshored service provider.

35. USDOJ will object or non-object to any new Outsourced or Offshored service providers within **30 days** of receiving notice.

Network Operations Centers

36. The Fusion Licensees agree to notify USDOJ in writing at least **45 days** prior to changing the location of their NOCs. USDOJ will object or non-object to any new NOC location within **45 days** of receiving notice of the proposed location change. The Fusion Licensees will provide the address, owner (even if one of the Fusion Licensees), Principal Equipment, and MNSP(s) (as well as any new Outsourced or Offshored service providers) of the NOC with the notification, as well as appropriately updated SSP and Cybersecurity Plans.

Change in Ownership and Service Portfolio

37. The Fusion Licensees agree to provide USDOJ notice of any changes to their businesses, including but not limited to corporate structure changes, ownership changes,⁵ corporate name changes, business model changes, corporate headquarter location changes, or business operation location changes no less than **20 days** in advance of such change. The North Haven Entities agree to provide USDOJ notice of changes to their businesses related to corporate structure changes, ownership changes, corporate name changes, corporate headquarter location changes, or business operation location changes no less than **20 days** in advance of such change. The Fusion Licensees and the North Haven Entities also agree to provide USDOJ notice within **20 days** of initiating any bankruptcy proceeding or any other legal proceeding undertaken for the purpose of liquidating, reorganizing, refinancing, or otherwise seeking relief from all or some of the Fusion Licensees' or the North Haven Entities' debts.

38. The Fusion Licensees and the North Haven Entities agree to provide USDOJ notice of any material change to their current portfolio of services offering, including offering other services beyond their current service portfolio, no less than **30 days** in advance of such change. USDOJ will object or non-object within **30 days** of receiving notice.

Annual Report

39. The Fusion Licensees agree to provide an annual report to USDOJ regarding the Fusion Licensees and the North Haven Entities' compliance with this LOA, to include:

- a. If the Fusion Licensees and the North Haven Entities submitted no notifications to USDOJ pursuant to this LOA during the preceding year, a certification that there were no developments that the Fusion Licensees or the North Haven Entities were required to report under the LOA during the year;
- b. Description of the Fusion Licensees' handling of U.S. Records, DC, and Lawful U.S. Process (*i.e.*, whether handled properly and in accordance with the assurances contained herein) including an updated list of Foreign persons with Access to U.S. Records, DC, and DCI, and the PII for each Foreign person so identified;
- c. Updated Principal Equipment and Offshored and Outsourced Service Provider Lists;

⁵ For the purposes of this Paragraph, "ownership changes" means any of the following: (1) a replacement or change in control of the North Haven Entities, MS Capital Partners Adviser, or any of their respective successors as general partner, managing member, majority shareholder, or other similar managing fiduciary of Fusion Connect and the other Fusion Licensees, vehicles and accounts that invest, directly or indirectly into Fusion Connect; (2) any new investment by, or change in existing rights of, any limited partner associated with any of the North Haven Entities that results in the North Haven Entities giving that limited partner a right to: (a) manage or control the activities of the North Haven Entities and/or the Fusion Licensees; and/or (b) gain Access to DC, DCI, or U.S. Records.

In addition, with respect to any calendar month during which any non-U.S. ultimate beneficial owner has acquired a direct or indirect equity interest in the Fusion Licensees, or the North Haven Entities and MS Capital Partners Adviser, of five percent or more, the Fusion Licensees, or the North Haven Entities and MS Capital Partners Adviser, as appropriate, shall provide an updated list of all non-U.S. ultimate beneficial owners holding or controlling a direct or indirect equity stake (voting or non-voting) of five percent or more in the Fusion Licensees or the North Haven Entities and MS Capital Partners Adviser no later than the end of the following calendar month.

- d. Notice if the Fusion Licensees have used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in their DCI or Principal Equipment that was designed, produced, or maintained by suppliers owned or controlled by, or subject to the jurisdiction or direction of, a U.S. Foreign Adversary (as designated by the Department of Commerce under Executive Order 13873 or any U.S. federal agency given subsequent comparable authority);
- e. Notice if the Fusion Licensees have used in the past year, or plan to use in the future, logic-bearing (*e.g.*, readable, writable, programmable) hardware, firmware, or software in their DCI or Principal Equipment from a provider listed on the FCC's Covered List (*See* FCC, List of Equipment and Services Covered by Section 2 of the Secure Networks Act, <https://www.fcc.gov/supplychain/coveredlist>), the Commerce Department's Entity List, or subject to a removal or exclusion order issued by the Secretary of Homeland Security, the Secretary of Defense, or the Director of National Intelligence pursuant to the SECURE Technology Act, 41 U.S. Code § 1321 *et seq.*;
- f. Description of the LOA compliance trainings conducted in the past year;
- g. List of every relationship with Foreign-owned telecommunications partners, including any network peering (traffic exchange) or interconnection relationships;
- h. Updated network diagrams and topology maps showing all facilities, devices, interfaces, PoPs, exchange points, and NOCs;
- i. Updated SSP and Cybersecurity Plans;
- j. Updated organizational chart showing all owners with a five percent or greater ownership share;
- k. Report(s) of any Security Incidents;
- l. A re-identification of every location that the Fusion Licensees store U.S. Records and the types of U.S. Records collected and stored;
- m. A re-identification of the name of and contact information of the LEPOC and Security Officer and Alternate Security Officer, if applicable;
- n. A list of all filings or notices to the FCC in the prior year, and a copy of these filings if requested by USDOJ;
- o. Certification of compliance with CALEA and any other applicable U.S. lawful interception statutes, regulations, and requirements;
- p. A description of the services that the Fusion Licensees provide in the United States to include: the specific services provided using a FCC license or authorization and other services they provided in the United States that do not require a FCC license or authorization. Such a description should also detail any services provided to Government or critical infrastructure customers; and
- q. Notification of any reasonably foreseeable matter that would give rise to an obligation under this LOA.

The annual report will be due one year after the Date of FCC Approval and every year thereafter. The Fusion Licensees agree to send electronic copies of the annual report and all notices and communications required under this LOA to the following individuals or any other individuals that USDOJ identifies to the Fusion Licensees in the future: Makenzie Briglia

Skopowski, USDOJ (at Makenzie.Briglia@usdoj.gov); and Tyler Wood, USDOJ (at Compliance.Telecom@usdoj.gov). Upon USDOJ request, the Fusion Licensees agree to provide USDOJ with paper copies of any annual report, notices, or communications required under this LOA.

Site Visits

40. The Fusion Licensees agree to permit USDOJ's requests for site visits and information, approve all requests to conduct on-site interviews of employees of the Fusion Licensees, and provide all documents necessary to verify the implementation of and compliance with the terms of this LOA, or to identify grounds for modification of this LOA. Site visits and interviews may be done through video conference if mutually agreed to by the Fusion Licensees and USDOJ. Unless due to exigent circumstances, site visits and interviews will take place during normal business hours of the Fusion Licensees. USDOJ agrees to provide the Fusion Licensees with reasonable notice prior to making requests under this paragraph.

Miscellaneous

41. If USDOJ finds that the terms of this LOA are inadequate to resolve any national security or law enforcement risks, the Fusion Licensees and the North Haven Entities agree to resolve USDOJ's concerns, according deference to USDOJ's views on the need for modification. Rejection of a proposed modification shall not alone be dispositive, but failure to resolve national security or law enforcement concerns may result in a request that the FCC modify, condition, revoke, cancel, terminate, or render null and void any relevant license, permit, or other authorization granted by the FCC to the Fusion Licensees or their successors-in-interest, or any other appropriate enforcement action required to address the concern.

42. The North Haven Entities further agree not to take any action to obstruct or otherwise impede the Fusion Licensees' compliance with the commitments in this LOA.

43. The Fusion Licensees and the North Haven Entities agree that in the event that the Fusion Licensees or the North Haven Entities breach the commitments set forth in this LOA, to include conduct contrary to timely USDOJ objection to any notice submitted pursuant to this LOA, a recommendation may be made that the FCC modify, condition, revoke, cancel, enter other declaratory relief, or render null and void any relevant license, permit, or other authorization granted by the FCC to the Fusion Licensees or their successors-in-interest, in addition to pursuing any other remedy available by law or equity.

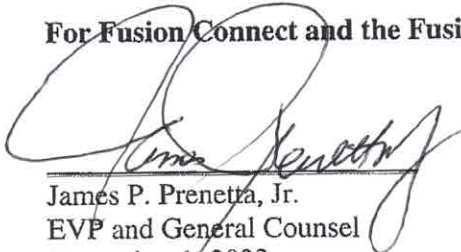
44. For purposes of counting days in this LOA, the day of the event that triggers the period is excluded, but every day thereafter is counted, including intermediate Saturdays, Sundays, and legal holidays. Include the last day of the period, but if the last day is a Saturday, Sunday, or legal holiday, the period continues to run until the end of the next day that is not a Saturday, Sunday, or legal holiday.

45. The Fusion Licensees and the North Haven Entities agree to permit disclosure of information submitted to the FCC in confidence pursuant to 47 C.F.R. § 0.442 to Federal Government departments, agencies, and offices whose principals are listed in Section 3 of Executive Order 13913.

46. The Fusion Licensees and the North Haven Entities understand that, upon execution of this LOA by an authorized representative or attorney, or shortly thereafter, the FCC will be notified that there is no objection to the grant of the application.

FUSION LICENSEES

For Fusion Connect and the Fusion Licensees

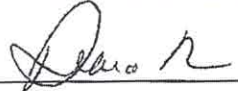

James P. Prenetta, Jr.
EVP and General Counsel
December 1, 2022

NORTH HAVEN ENTITIES

For North Haven Credit Partners II L.P.

By: MS Credit Partners II GP L.P., its general partner

By: MS Credit Partners II GP Inc., its general partner

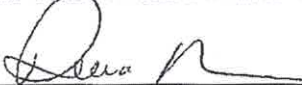
By: 
Name: Debra Abramovitz
Title: COO/Executive Director

December 1, 2022

For North Haven Senior Loan Fund L.P.

By: MS Senior Loan Partners GP L.P., its general partner

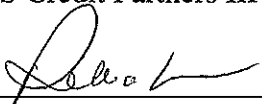
By: MS Senior Loan Partners GP Inc., its general partner

By: 
Name: Debra Abramovitz
Title: COO/Executive Director
December 1, 2022

For NH Credit Partners III Holdings L.P.

By: MS Credit Partners III GP L.P., its general partner

By: MS Credit Partners III GP Inc., its general partner

By:  _____

Name: Debra Abramovitz

Title: COO/Executive Director

December 1, 2022